

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No. 8666 of 2021

Nasir Ali

Versus

Govt. of Punjab and
others.

Sr. No. of order/ proceedings	Date of order/ proceedings	Order with Signature of Judge, and that of parties or counsel, where necessary.
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16.06.2021

Ch. Imran Raza Chadhar, Ch. Zahcer Afzal Chadhar and Ch. Qasim Raza Chadhar, Advocates for the Petitioner.
 Mr. Fahad Ikram and Hamid Rehman, Advocates for Respondent No. 4.
 Mr. Gohar Nawaz Sindhu, AAG with Younas Kamboh, Litigation Officer, Excise Department, Mehr Abdur Rehman Masood ETO, Motor Registration Authority.

The brief and necessary facts of the titled Petition are that the Petitioner is a contractor by profession and deals with leases granted by Mines and Mineral Department, Government of the Punjab, Lahore. It was submitted that the Respondent No. 4 illegally and unlawfully got registered three Drag Flow/Dredger Machines (the "Dredger Machines") bearing Registration Nos. LES-19-4667, LES-19-4490 and LES-19-4491 with the Respondent No. 3 (Motor Registration Authority-III, Lahore) on the basis of alleged forged and fictitious documents and since the Petitioner is owner of one of the Dredger Machine, filed a complaint before the Respondent No. 3 for cancellation of above registrations on the assertion that the Dredger Machines do not fall within the parameter of Section 2(23) of the West Pakistan Motor Vehicles Ordinance, 1965 (the "Ordinance"), wherein 'Motor Vehicle' has been defined. Accordingly, the Respondent No. 3 vide order dated 11.08.2020 cancelled

the aforesaid registrations with further direction to surrender the registration Certificates, registration files and security featured computerized number plates. The Respondent No. 4 filed an appeal before the Respondent No. 2 (Director, Excise and Taxation Region-C, Lahore) which was accepted on 28.01.2021 and the aforesaid registration numbers of the Dredger Machines were restored.

2. After hearing the parties and examining the record, it transpires that there are two aspects of this case. The first relates to the ownership and possession with respect to one of the Dredger Machines between the Petitioner and the Respondent No. 4. In this behalf, it is observed that the matter pertains to factual inquiry and recording of evidence, therefore, the same cannot be decided in exercise of extra ordinary and discretionary constitutional jurisdiction vested in this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. Hence, any of the parties may take independent legal action with respect to their rival claim of ownership and possession with respect to one or more of the machines, as the case may, be before the appropriate forum.

3. The second question requiring determination by this Court is as to whether the Dredger Machines were covered under the definition of 'Motor Vehicle' as defined in Section 2(23) of the Ordinance and as such were liable to be registered under Section 25 of the Ordinance. Section 2(23) of the Ordinance defines 'Motor Vehicle' as follows:-

"23. Motor Vehicle means any mechanically propelled vehicle adapted for use upon road whether the power of propulsion is transmitted thereto from an external or internal source, and includes a chassis to which a body has not been attached, a tractor and a trailer; a combined

harvester, a rig, a fork lifter, a road roller, construction and earth moving machinery such as a wheel loader, a crane, an excavator, a grader, a dozer and a pipe layer, a road making and a road/sewerage cleaning plant but does not include a vehicle running upon fixed rails or used solely upon the premises of the owner."

4. By dissecting the above definition of 'Motor Vehicle' it becomes clear that the definition is divided into three parts. The **first** part unequivocally provides that a 'Motor Vehicle' is any mechanically propelled Vehicle which is constructed or adapted for use upon roads. It does not matter whether the power of propulsion is transmitted thereto from an external or internal source. The dictionary meaning of '**Propel**' is to move, drive or push forward in a particular direction. '**Mechanical**' means operated by power from an engine. In other words, '**Mechanically Propelled**' means any Machine connected with an engine in such a manner that it is able to move or drive forward or in a particular direction. Hence, it is *sine qua non* that a 'Motor Vehicle' is capable of moving and adapted as such for use upon road. Conversely, any Machine which is not adapted for use upon road but itself requires a Vehicle for its transportation to a particular site for installation is not a 'Motor Vehicle'.

The **second** part of the definition specifically includes certain Vehicles in the definition of 'Motor Vehicle' such as a chassis to which a body has not been attached, a tractor, a trailer, a combined harvester, a rig, a fork lifter and a road roller. An analysis of the inclusive items makes it clear that all the specific categories mentioned as aforesaid are mechanically propelled vehicles which are adapted for use upon road. It is noteworthy that construction and earth moving machinery is specified as a general category to be included in the

definition by specifying examples such as a wheel loader, a crane and an excavator, a grader, a dozer and a pipe layer, a road making and a road/sewerage cleaning plant. In other words, with respect to construction and earth moving machinery which is of different types, some specific Machines are included by name but the words "such as" clearly means that other construction and earth moving machinery can be categorized as 'Motor Vehicle' provided it can be established that it is a mechanically propelled Vehicle adapted for use upon roads.

The **third** part of the definition provides exemptions as to what is not included in the definition of 'Motor Vehicle'. In this behalf, two types of exemptions are provided, that is to say, a Vehicle running upon fixed rails or used solely upon premises of the owner. A deeper appreciation of the exemptions would mean that there may be a Vehicle which is mechanically propelled Vehicle but is not used upon roads rather running upon fixed rails. Similarly, there can be a Machine which is mechanically propelled Vehicle but is not used upon roads, rather, is confined for use upon the premises of the owner. A machine falling in these two categories may be a 'Motor Vehicle' but on account of nonuse upon road, the same are excluded in specific terms from the definition of 'Motor Vehicle'.

5. In order to understand the true intent and purpose of the Ordinance, it is beneficial to examine the scheme of the law as provided in the Ordinance. Section 2 of the Ordinance deals with the definition of various terms used in the Ordinance. Section 2(2) "axle weight"; Section 2(5) "contract carriage"; Section 2(6) "delivery van"; Section 2(7) "Driver"; Section 2(8) "emergency vehicle"; Section 2(11) "goods vehicle"; Section 2(13) "heavy transport

vehicle”; Section 2(15) “invalid carriage”; Section 2(16) “license”; Section 2(18) “light transport vehicle”; Section 2(19) “locomotive”; Section 2(20) “motor cab”; Section 2(21) “motor car”; Section 2(22) “motorcycle”; Section 2(27) “private carrier”; Section 2(28) “public carrier”; Section 2(29) “public highway”; Section 2(30) “public place”; Section 2(31) “public service vehicle”; Section 2(35) “school bus” and Section 2(36) “Semi-trailer” all lead and fortify basic emphasis of the Ordinance that it has been promulgated to regulate ‘Motor Vehicle’ of different species and categories for their use upon roads and in furtherance to this basic activity regulate their movement upon roads with respect to traffic, safety of users and establish regulatory data base with respect to registration of all types of ‘Motor Vehicle’. It is also clearly established that ‘Motor Vehicle’ is a catch all provision and all other types of Vehicles defined by the Ordinance are different types and species of ‘Motor Vehicle’. Chapter -II of the Ordinance deals with license of driver of Motor Vehicles, Chapter – IV lists provisions with reference to Control of Transport Vehicles, Chapter VII relates to matters regarding Control of Traffic and Chapter – VIII is with reference to Offences, Penalties and Procedure. The conjunctive and overall reading of the Ordinance as a whole leads to an inescapable conclusion that any Machine which is not adapted for use upon roads is not a ‘Motor Vehicle’ and falls outside the domain and ambit of the Ordinance.

6. Chapter – III of the Ordinance deals with the Registration of the ‘Motor Vehicles’. Section 23 of the Ordinance makes it obligatory to register a ‘Motor Vehicle’ by stipulating that no person shall driver any ‘Motor Vehicle’ unless the Vehicle is registered in

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accordance with this Chapter and the Vehicle carries registration mark displayed in the prescribed manner. Section 27 of the Ordinance importantly states that the Registration Authority may, before proceeding to register a 'Motor Vehicle' require the person applying for registration of the Vehicle to produce the Vehicle either before itself or such authority as may be appointed for this purpose so that the Registration Authority may satisfy itself that particulars contained in the application are true and the Vehicle complies with the requirements of Chapter VI and the rules made thereunder. Section 28 of the Ordinance empowers the Registration Authority for reasons to be recorded in writing to refuse to register a 'Motor Vehicle' on multiple grounds. The Registration Authority is vested with inherent and necessary powers to order production of the Vehicle for examination and refuse its registration within the parameters of law. In this behalf, any 'Motor Vehicle' which does not comply with the requirements of Chapter VI of the Ordinance or of the rules made thereunder is required to be refused registration. Section 73 of the Ordinance contained in Chapter VI is relevant for the purpose which is reproduced below: -

"73. General provision regarding construction and maintenance—Every motor vehicle shall be constructed and so maintained as to be at all times under the effective control of the person driving the vehicle".

Section 74 of the Ordinance further empowers the Government to make rules regarding construction, equipment and maintenance of 'Motor Vehicles' and trailers. The Registration Authority is also empowered to suspend registration of Vehicle under Section 34 or to cancel the registration of 'Motor Vehicle' under Section 35 of the Ordinance. The Order of refusal to register a

'Motor Vehicle', or suspension or cancellation of registration of a 'Motor Vehicle' are appealable under Section 36 of the Ordinance.

7. It was contended that the Dredger Machines are not constructed or adapted for use upon roads. Rather, the Dredger Machines are imported in dismantled form, consisting of multiple parts and the same are transported upon the river or canal bed, installed and fixed at a particular site to remove mud from the bottom of river or canal. The Dredger Machines are neither constructed in the form of a Vehicle which is capable of moving by itself upon tyres but is dependent to be transported on some other Vehicle from one site to the other. The facts and circumstances of the case clearly suggest that the Registration Authority did not physically examine the Dredger Machines before registering the same as required under Section 27 of the Ordinance to satisfy the requirements of Section 73 read with Section 2(23) of the Ordinance. The perusal of the impugned order dated 28.01.2021 makes it clear that none of the vital aspects of the definition of 'Motor Vehicle' as contemplated by Section 2(23) of the Ordinance were examined by the Respondent No. 2 and it was simply held that Dredger Machines having rigging features of earth moving machine and a unique serial/chassis number were registered rightly by the Registration Authority. There is absolutely no discussion to the various aspects of the definition of 'Motor Vehicle' as contained in Section 2(23) of the Ordinance and interpreted herein. It is importantly observed that even the order dated 11.08.2020 passed by Respondent No. 3 (Motor Registration Authority-III, Lahore) is also non-speaking to the effect that it failed to conclusively determine as to whether the

Dredger Machines fall within the definition of 'Motor Vehicle' or not and as such whether the same are liable to be registered or not.

From the above discussion, the following conclusions are arrived at with respect to the definition of 'Motor Vehicle' under Section 2(23) of the Ordinance: -

- (i) Any mechanically propelled Vehicle adapted for use upon road is a 'Motor Vehicle';
- (ii) Any mechanically propelled Vehicle not adapted for use upon roads but running upon fixed rails is not a 'Motor Vehicle';
- (iii) Any mechanically propelled Vehicle adapted or not adapted for use on roads but used solely upon premises of the owner is not a 'Motor Vehicle';
- (iv) Adapted for use upon roads is a sine qua non for any Machine to qualify in the definition of 'Motor Vehicle'; and
- (v) Construction and earth moving Machine which can be mechanically propelled and adapted for use upon roads can qualify to be registered as 'Motor Vehicle' subject to physical examination of the Machine by the Registration Authority to his satisfaction.

8. Before parting with this Judgment, it is also important to address the contention raised by the learned counsel for the Respondent to the effect that the titled Petition is not maintainable since the Petitioner does not have any locus standi to invoke the jurisdiction of this Court under Article, 199 of the Constitution of Islamic Republic of Pakistan, 1973 being not an aggrieved person with respect to the registrations of the Dredger Machines of the Respondent No. 4. The Judgment referred in Writ Petition No. 30958 of 2017 titled, Pakistan Frameset Association vs. Province of Punjab and three others was relied upon in this behalf. The said Judgment is

distinguishable for the reason that the Petitioner and the Respondent No. 4 have rival claim regarding ownership and possession of one of the Dredger Machines. Further, although, registration of a Vehicle is not a conclusive proof of ownership or title of a 'Motor Vehicle' but where there are no title documents with respect to ownership or possession of a Machine, the prima facie registration of a 'Motor Vehicle' in the name of a particular person may create a presumption in favor of such a person which though rebuttable but may give an unfair advantage to him against the other person. Such registration is definitely going to clog the ownership of a person at least before the Registration Authority in terms of Section 2(24) of the Ordinance which stipulates that 'owner' under the Ordinance means the person in whose name the 'Motor Vehicle' is registered. Moreover, if a Dredger Machine is held to be registerable under the Ordinance then all Dredger Machines would be liable to be registered as such and even on this score persons claiming to be owners of similar Dredger Machines have a right to contest as to whether the Dredger Machines fall within the definition of 'Motor Vehicle' as defined under Section 2(23) of the Ordinance or not and as such whether the Dredger Machines are liable to be registered under the Ordinance or otherwise.

9. In view of what has been discussed above, the Order dated 11.08.2020 passed by Respondent No. 3 (Motor Registration Authority – III, Lahore) and the Order dated 28.01.2021 passed by Respondent No. 2 (Director, Excise and Taxation Region-C, Lahore) are set-aside; Consequently, the Registration Certificates of Dredger Machines bearing Registration Nos. LES-19-4667, LES-19-4490 and LES-19-4491 shall stand cancelled, the

applications of the Respondent No. 4 with respect to registration of the Dredger Machines in question shall be deemed to be pending before the Respondent No. 3 who shall decide the question of registration of the Dredger Machines afresh after physical examination of each Dredger Machine in the light of the relevant provisions of the Ordinance.

The Petition is disposed of in the above terms.

(Abid Hussain Chattha)
Judge

Approved for reporting.

Judge

24-6-21
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